

SC129602 SC129602

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Case Number: SC129602 Hearing Date: August 17, 2026 Dept: P

Tentative

Ruling

Kenneth

Kaplan v. Baker Equity, et al., Case No. SC129602

Defendants'

Motion for Relief from Order Deeming Requests for Admission Admitted

Hearing

Date: August 17, 2026

Background

Plaintiff

Kenneth Kaplan brought this action for fraudulent conveyance and to quiet title to 268 S. Almont Drive, Beverly Hills, California against Defendants Baker Equity, LLC; Eagle Nasher, LLC; Shoor Temple, LLC, A Delaware Corporation; Shoor Temple, LLC, A Nevada Corporation; Joseph Youshaei; Jila Youshaei; and Farbod Youshaei. Kaplan alleges that all Defendant corporations are owned by the Joseph, Jila, and Farbod Youshaei. The companies own three properties: two car washes and the Beverly Hills house, the subject of this action. (First Amended Complaint ("FAC"), ¶ 25.) In 2017, Kaplan obtained a \$486,094.07[1] judgment against Defendants in Massachusetts. After entering judgment, the Massachusetts court issued an injunction prohibiting the Youshaeis from selling their assets. (FAC, ¶ 29.) Kaplan domesticated the Massachusetts judgment in June 2018.

Kaplan

filed this action in June 2018 because the Youshaeis allegedly violated the Massachusetts injunction by transferring the Beverly Hills property and the car washes to their companies. (FAC, ¶ 46.) Kaplan filed the operative First Amended Complaint (FAC) in August 2018.

Following

the Youshaeis' failure to respond to discovery, the Court granted Kaplan's Motion to deem RFAs admitted on May 28, 2019.

In August

2019, the Court consolidated this case with Case No. SC 12960, filed by Eagle Nasher, Shoor Temple LLC, and Farbod Youshei against the Youshaeis. The parties in that case stipulated to a judgment that the Youshaeis appealed in 2021.

Kaplan

dismissed the two Shoor Temple defendants, Eagle Nasher, LLC, and Farbod Youshaei from this action following the settlement and resolution of the appeal.

In January

2023, this case was stayed pending Joseph Youshaei's bankruptcy proceedings. Joseph Youshaei's bankruptcy proceedings were resolved on August 2, 2024. On October 10, 2024, Baker Equity filed for bankruptcy. As of September 2025, bankruptcy was no longer an issue.

On March

18, 2026, the Court denied Kaplan's Motion for Judgment on the Pleadings.

On July

13, 2026, Kaplan filed a motion in limine to preclude Defendants from introducing evidence contradicting the requests for admission that the Court deemed admitted in 2019.

On July

29, 2026, Defendants filed this motion for relief from the 2019 order deeming Plaintiffs' Requests for Admission admitted.

Defendants

move under Code Civ. Proc. § 2033.300 and § 473(b). Defendants argue that they

were self-represented until recently and were unable to respond to discovery requests or realize the importance of the discovery requests because Defendant Joseph Youshaei has been ill and Defendant Jilla Youshaei has been his primary caretaker. (Motion, p.4.) Defendants also argue that Plaintiffs cannot show that granting this motion would cause substantial prejudice. (Id. at p. 5.)

Trial in

this matter is set for August 17, 2026.

Motion

for Relief from Order Deeming Requests for Admission Admitted

CCP section

2033.300 provides that “[a] party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.” (Code Civ. Proc., § 2033.300(a).) “The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party’s action or defense on the merits.” (Id., § 2033.300(b).) “The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following: [¶] (1) [a]n order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission[;] [¶] (2) [a]n order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.” (Id., § 2033.300(c).)

“Section

2033.300 eliminates undeserved windfalls obtained through requests for admission and furthers the policy favoring the resolution of lawsuits on the merits.” (New Albertsons, Inc. v. Superior Court (2008)

168 Cal.App.4th 1403, 1418.) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief.” (Id. at 1420.) “Accordingly, the court’s discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the

merits.” (Id. at 1420-21.)

The

statutory language in section 2033.300, “mistake, inadvertence, or excusable neglect”, is identical to some of the language used in CCP section 473(b). (Id. at 1418-19.) “The use of identical terms in two different statutes serving similar purposes suggests that the Legislature intended those terms to have the same meaning in both statutes.” (Id.) “Moreover, the legislative history of section 2033, subdivision (m), the predecessor of section 2033.300, suggests that the Legislature intended ‘mistake, inadvertence, or excusable neglect’ to have the same meaning in the statute as those terms have in section 473, subdivision (b).” (Id. at 1419.)

Here,

Defendants’ only evidence of mistake is their declarations that they did not realize the importance of the RFAs at the time Plaintiffs moved to deem the RFAs admitted, more than seven years ago, and that they may have been represented at the time and believed their attorney would handle it. (Joseph Youshaei Decl., ¶¶ 4-6.) Defendants also attest that Joseph Youshaei has been ill at various points throughout this litigation, but do not provide any evidence that illness prevented them from responding to the RFAs at issue. (see generally, Joseph Youshaei Decl.) Pro per litigants are held to the same standard as attorneys. (Kobayashi v. Superior Court (2009) 175 Cal.App.4th 536, 543.) Failure to recognize the importance of requests for admission would not constitute excusable neglect for an attorney. (Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215, 229 [“Conduct falling below the professional standard of care, such as failure to timely object or properly advance an argument, is therefore not excusable.”].) Recognizing this type of error as excusable mistake or neglect in Defendants’ case would constitute exceptional treatment of a pro per litigant because this Court could not set aside an order deeming RFAs admitted if an attorney made the same error.

Additionally,

Kaplan would be prejudiced if the Court set aside the 2019 order deeming the requests for admission admitted because trial is set to start the same day this motion is heard, August 17, 2026. If the Court granted Defendants’ motion, Kaplan would need to re-structure his entire case on the eve of trial and would likely need additional discovery, requiring a trial continuance. This case is already

more than eight years old, so the Court cannot delay trial any further.

Defendants

have not shown excusable neglect or mistake.

Conclusion

Defendants'

Motion for relief from order deeming requests for admission admitted is DENIED.

[1] As

amended to include interest, see FAC, ¶ 37.